

1	American Express National Bank vs. Craft Beer N' Pizza Inc 2025-01509564	Motion for Summary Judgment and/or Adjudication <i>Case dismissed 9/22/26.</i>
2	Farago vs. Hoag Memorial Hospital 2026-01540129	Motion for Preference Plaintiff Shirley Farago’s motion for trial preference is GRANTED. Trial is set for January 11, 2026 at 8:30 a.m. in this department. The court finds good cause to hear Defendant Hoag Memorial Hospital Presbyterian's Motion for Summary Judgment presently on calendar for 12/31/26, later than 30 days before the trial date. Under Code of Civil Procedure section 36, subdivision (a), a party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) the party has a substantial interest in the action as a whole, and (2) the health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation. Responding-party does not dispute that plaintiff is over the age of seventy years old and has a substantial interest in this litigation. (Opposition of Defendant Thomas Velling, M.D., p. 1, Ins. 3-4 [ROA 36].) Responding-party contends plaintiff failed to show that her current health is of such an ill state that trial preference is necessary to prevent prejudicing her interest in the litigation. The standard under section 36, subdivision (a) does not require a showing of imminent death or complete incapacity. In <i>Fox v. Superior Court</i> (2018) 21 Cal.App.5th 529, the court explicitly rejected the argument that a plaintiff must demonstrate “death or incapacity might deprive [her] of the opportunity to have [her] case effectively tried.” The court emphasized that section 36 requires only a showing that the party’s health is such that a preference is necessary to prevent prejudicing her interest in the litigation — a more open-ended standard than the “substantial medical doubt of survival beyond six months” required under subdivision (d). The court held that the proposed reading requiring a showing of likely unavailability for trial sets the prejudice standard too high. (<i>Id.</i>) Plaintiff’s evidence presents a compelling case under this standard. Plaintiff’s marked and continuing physical decline — including near-constant pain, severely limited mobility requiring